CS (COMM) No.1477/2020
ICICI Bank Ltd. Vs. M/s M.R. Steel Corporation

08.04.2021

File taken up today on the application dated 07.04.2021 (actually filed in the Court on 08.04.2021) under Order V Rule 20 CPC for seeking permission to serve the Defendant by means of publication, filed on behalf of the Plaintiff.

Present: Sh. Mohit Tyagi, Counsel for the Applicant/Plaintiff.

Counsel for the Applicant/Plaintiff stated on the lines of the averments made in the application and further stated that the processes issued to the Defendant on the available address received back unserved and despite having been made sincere efforts, no fresh address of the Defendant could be traced out except the last known address which is mentioned in the array of the parties, hence the present application.

Heard and perused the record. The submission of the Counsel for the Applicant/Plaintiff is found to be in consonance with the record. In the circumstances, it appears that the Defendant cannot be served in the ordinary manner. Let he be served through substituted mode by way of publication in the newspaper 'Rashtriya Sahara' on filing of PF and deposition of the requisite publication charges. As prayed, process be given **Dasti**. PF be filed within two weeks. **The application accordingly stands disposed off.**

Case to come up on 19.07.2021 the date already fixed.

(M.C. Gupta)
District Judge (Commercial Court)-03
Central/ THC/ Delhi.
08.04.2021